TRACY TRIBBETT
PACIFIC JUSTICE INSTITUTE
6404 THREE RIVERS DRIVE
PASCO, WA 99301
(509-)-713-9868
TTRIBBETT@PJI.ORG

IN THE UNITED STATES DISTRICT COURT
FOR THE WESTERN DISTRICT OF WASHINGTON
SEATTLE

CHEYANNE ROSA DIXSON Plaintiffs, vs. CITY OF ISSAQUAH POLICE DEPARTMENT, Mayor Mary Lou Pauly, Wally Bobkiewicz, DOES 1-25 Defendant	Case No.: COMPLAINT FOR DECLARATORY RELIEF AND DAMAGES [JURY TRIAL DEMANDED]

This is an action for declaratory relief and damages brought by Plaintiff, a former employee of the City of Issaquah Police Department, seeking remuneration for violation of her right(s) to hold employment free from discrimination in accord with Title VII of the Civil Rights Act of 1964 (42 USC §2000(e) et seq.), and under Washington's Law Against Discrimination (WLAD) (RCW 49.60). Additionally, Plaintiff brings suit for Due Process Clause violations under the Federal Constitution, §1983 as against all defendants acting under color of law, for policies and procedures depriving Plaintiff of her rights. The City of

Issaquah terminated Plaintiff without proper procedural processes and requirements under RCW 41.12 and Issaquah Civil Service Rules.

There are three issues presented to the court for review:

A. Does an accommodation extending an employee's time in which to become vaccinated constitute a reasonable accommodation when the employee has already requested an exemption and been granted an exemption to a vaccine policy?

B. Did City of Issaquah violate Plaintiff's right to be free from discrimination on the basis of her status under § 42 USC 2000(e) et seq. and RCW §49.60 in failing to reasonably accommodate?

C. Did the City of Issaquah violate Plaintiff's XIV Amendment Due Process rights in failing to discharge her, for-cause, as required by RCW 41.12 and Rule 15 of the Issaquah Civil Service Rules?

INTRODUCTION

1. This is a complaint for employment discrimination brought by an employee holding religious convictions against the SARS-CoV-2 (CV19) vaccine. The City of Issaquah ordered all of its employees to submit to vaccination for CV19, and/or submit a request for exemption. Plaintiff submitted a request for a lifetime exemption and obtained an exemption from the CV-19 vaccine. The City of

Issaquah engaged in a reasonable accommodation process and determined that it would place an undue hardship on the department to accommodate Plaintiff's unvaccinated status, but accommodated her, via an MOU negotiated with the Union, allowing her to continue working through December with an extension through February 16 in order to allow her additional time to become vaccinated.

2. The Plaintiff submitted to masking and twice weekly testing as well as eating her lunch privately in her car on City property.
3. A bona fide dispute exists as to whether an accommodation to allow a person who holds an exemption additional time to become vaccinated is a reasonable accommodation. Plaintiff contends it is not.
4. An additional dispute exists as to whether or not it was an undue burden to continue to accommodate Plaintiff when she was already performing her job and accommodated.
5. Plaintiff was denied due process under the XIV Amendment when she was terminated without a "for-cause" reason stated in writing as required under RCW 41.12 and Issaquah Civil Service Rules.

II. JURISDICTION AND VENUE

2.1 This Court has original jurisdiction over this action pursuant to 28 U.S.C. § 1331, as it arises under the laws of the United States, and presents a federal question, pursuant to 28 U.S.C. § 1343(a)(3)-(4). The Court also has jurisdiction under 42 U.S.C. §2000e5(f)(3). Venue is proper within this judicial district and division, pursuant to 28 U.S.C. § 1391(b), because the relevant events have occurred and are threatened to occur in this jurisdictional district and division. The Defendant's is a municipality in this district.

2.2 This Court has supplemental and concurrent jurisdiction to hear State claims brought before the Court pursuant to 28 U.S.C. § 1367(a).

2.3 Plaintiff's claims for damages and declaratory relief are authorized by 28 U.S.C. §2201-02, Civil Rules 57 and 65, and the general legal and equitable powers of this Court, which empower this Court to grant the relief requested.

III. PARTIES

3.1 Plaintiff was employed by the City of Issaquah Police Department and is a resident of Washington State and lives in King County where the actions complained of took place. Plaintiff was an employee as defined by 42 U.S.C. §2000(e). Plaintiff was an employee of the Defendant City, was affected by

Defendant's actions, and deems herself aggrieved by the actions of named Defendant(s).

3.2 Defendant is a Municipality located in King County WA. Defendant, City of Issaquah, employs the Plaintiffs and/or did employ the plaintiffs during the time the actions in this complaint took place, and is an "employer" as defined by 42 U.S.C §2000(e) and RCW 49.60.010. Defendants Pauly and Bobkiewicz are employed by the Municipality, acted in their official capacities, and are residents of Washington State, King County.

3.3 The true names and capacities, whether individual, corporate, associate, or otherwise, of DOES 1-25 inclusive, are unknown to Plaintiffs at this time, who therefore sues said Defendants by such fictitious names. Plaintiffs are informed and believe and thereon allege that each of the fictitiously named Defendants are in some way responsible for, or participated in or contributed to, the matters and things complained of herein, and are legally responsible in some manner. Plaintiffs will seek leave to amend this Complaint when the true names, capacities, and responsibilities have been ascertained.

IV. FACTS

4.1 On August 09, 2021, Governor Inslee issued Proclamation 21-14 et seq, which required frontline employees to be vaccinated against CV-19 by October

18, 2021. In like kind, the Mayor of Issaquah issued an Administrative Order mirroring the Governor's Proclamation. A copy of the Proclamation and the Mayor's Administrative Order accompanies this Complaint, are incorporated in full, and marked as Exhibit 1 and 2, respectively.

4.2 Prior to the implementation of the Proclamation in August of 2021 Plaintiff sent a "Religious Accommodation Request Form" to Human Resources (HR) which outlined her faith-based reasons for requesting a lifetime exemption from the vaccine. A copy of Plaintiff's request is incorporated in full and referenced herein as Exhibit 3 and accompanies this Complaint.

4.3 In a responsive document dated October 15, 2021 HR stated that they had received the request for accommodation, deemed Ms. Dixson's beliefs to be sincerely held, exempted her from the vaccine requirements, but could not reasonably accommodate her without posing an undue hardship on the City. The letter goes on to state that the City could, in fact, reasonably accommodate through December 15, 2021. In order to afford Ms. Dixson more time to become vaccinated. This was insulting to Ms. Dixson's faith as she had already made clear she would not be receiving the vaccine and the City was attempting to coerce her into violating her beliefs. The letter outlined the terms of accommodation which included masking, testing, and eating off-site. Ms Dixson complied with all the accommodation requirements and continued in

her "public facing" job. This letter is incorporated by reference and attached hereto as Exhibit 4.

4.4 On February 2, 2022 an email from HR stated that Ms. Rosa [Dixson] was granted a temporary accommodation through December 15, 2021 to consider and provide sufficient time to vaccinate as a condition of future employment. The letter stated that on November 10, 2021 the POA (Police Officers Association) reached an agreement which extended the accommodation through February 16, 2022. The letter went on to state that the City intended to separate employment, describe a Loudermill hearing and how to request such a hearing, the terms of reinstatement, and was signed by a Wally Bobkiewicz of HR. The letter does not mention a for-cause reason for termination. The letter is incorporated in full and attached hereto as Exhibit 5.

4.5 On February 14, 2022 the Mayor delivered communication via email which stated that the City Administrator had informed her that a "Loudermill" had occurred, and that as a result of all the facts provided to her (the Mayor) Plaintiff's employment with the City would end on February 14, 2022.

4.6 The Mayor went on to state that the City had not received proof of vaccination from Plaintiff, and that the City intended to separate employment. The City reiterated that if the Plaintiff, who had already been exempted from the vaccine requirement, changed [her] mind regarding vaccination then [she] would be

able to return to her [previously accommodated] position. A copy of the communications is incorporated in full and attached hereto as Exhibit 6.

4.7 Following the letter dated February 2, 2022 there was/were no other communication regarding "for-cause" reasons for separation/termination as is required by RCW 41.12.090 and Issaquah Civil Service Rules and Regulations, Rule 15. Ms. Dixson was employed by the City five years and was a commissioned officer entitled to due process rights as outlined in the aforementioned code and rules.

4.8 Plaintiff has received her right to sue letter incorporated in full and attached to this Complaint as Exhibit 7.

4.9 Plaintiff has submitted her tort form to the City of Issaquah. A copy of the filed form is attached to this Complaint and incorporated in full and marked as Exhibit 8.

4.10 Plaintiff has personal knowledge of and asserts that other employees of Issaquah PD were accommodated due to their medical status. Medical accommodations were granted while religious accommodations were not.

V. Cause of Action

First Cause of Action
Discriminatory Employment Practices
Violation of 42 U.S.C. §2000(e)

5.1 Plaintiff realleges the above statements of fact as if fully stated herein.

5.2 At all times relevant hereto, Title VII of the Civil Rights Act of 1964, 42 U.S.C. 42000(e) et seq. was in full force and effect and was binding on the City of Issaquah. Title VII forbids discrimination against a person based on their sincerely held religious beliefs. At all times relevant hereto, the Plaintiffs were performing competently in the position they held with the Snohomish Regional Fire Department.

5.3 Title VII makes it an unlawful employment practice to fail or refuse to reasonably accommodate the religious beliefs and practices of an employee that is in conflict with the work requirement, i.e., COVID-19 vaccination.

5.4 Defendant knew of Plaintiff's sincerely held beliefs and exempted her from the requirement of vaccination. Plaintiff was qualified for her position and continued to operate in her position past the October 18, 2021 implementation of the Proclamation. The Department failed to provide reasonable accommodation beyond February 16, 2022 without any change to the circumstances or functions of the job or accommodations. The City took adverse employment action against Plaintiff by separating her from employment. Exhibit 5.

5.5 There is a dispute between the Plaintiffs and Defendant(s) as to the claimed inability [of the City] to reasonably accommodate Plaintiff on the basis of her sincerely held religious beliefs: Defendants accommodated individuals with medical exemptions but refused to accommodate Ms. Dixson in her religious beliefs. The City treated similarly situated individuals more favorably when they requested medical exemptions.

SECOND CAUSE OF ACTION
Violation of Washington Law Against Discrimination
(RCW §49.60)

5.6 Plaintiffs hereby incorporate and reallege the statements of fact as though fully set forth herein.

5.7 At all times relevant hereto RCW §49.60.030 was in full force and effect and was binding on SRFR. During such time Plaintiffs were performing competently in the position they held with SRFR.

5.8 Plaintiff put Defendant on notice that [she] had a sincerely held religious belief which conflicted with the vaccination policy/requirement of the employer.

5.9 Defendant acknowledged Plaintiff's sincerely held religious beliefs, and appears to have accepted [them] despite repeated attempts to extend time in order to allow Plaintiff time to "become vaccinated".

5.10 Defendant accommodated Plaintiff for three months following the implementation of the vaccine policy, and, thereafter, on the basis of her status, took adverse action against Plaintiff without cause.

THIRD CAUSE OF ACTION
Fourteenth Amendment
Violations Due Process of Law
Violation of RCW 41.12 and Issaquah Civil Service Rules
(42.S.C. §1983)

5.11 Plaintiff realleges and incorporates all statements of fact previously made as if fully stated herein.

5.12 Plaintiff is a commissioned civil service member as that term is defined in RCW 41.12.050 and the Issaquah Civil Service Rules and Regulations. Under the same, Civil Servant(s) are entitled to a written accusation by the appointing power…; a written statement of which accusation…. shall be served on the accused… A classified civil service member is then entitled to an appeal before the commission. Additionally, the writing [termination] must state a for-cause reason for termination under RCW 41.12.090.

5.13 Plaintiff was not given notice of a for-cause termination at any point, to date.

5.14 Plaintiff is entitled to such policies and procedures as outlined in 41.12 RCW and the Issaquah code, and has been denied procedural Due Process in violation of the Fourteenth Amendment of the United States Constitution in having

her property right, the employment contract and interest in her job, abridged without a for-cause termination, the ability to appeal such, or to be heard before the commission entitled to hear such appeals.

5.15 Acting under color of law and authority vested in them Mayor Lou Pauly, Wally Bobkiewicz, and other Does denied Plaintiff her Constitutional Due Process rights by failing to issue a for-cause termination in violation of State and Municipal laws.

VI. PRAYER FOR RELIEF

WHEREFORE, Plaintiff respectfully prays for the following relief:

6.1 A declaration that, under these circumstances, an on-going accommodation of Plaintiff from October 18, 2021 to February 16, 2022 without any change in the stated hardship of accommodation is insufficient to substantiate an undue burden claim by an employer and subsequent adverse action. Such action is a violation of Title VII and WLAD.

6.3 Award Plaintiff the entire amount of her employment contract.

6.4 Award Plaintiffs compensatory damages and other and further compensatory damages in an amount according to proof;

6.5 Award to Plaintiffs their reasonable attorneys' fees and costs of suit;

6.6 Grant Plaintiffs such additional or alternative relief as the Court deems just and proper.

6.7 De novo review of the failure of the City to follow procedural due process requirements under RCW §41.12 and Issaquah Civil Service Rules, and XIV Amendment violations which resulted.

6.9 General and special damages against Defendants according to proof.

6.10 Declaratory relief that Plaintiff be reinstated to her former position.

December 15, 2022

s/ Tracy Tribbett
Tracy Tribbett, WSBA #35922
6404 Three Rivers Drive
Pasco WA 99301
Tel: 509-713-9868
Email: ttribbett@pji.org

EX. 1

STATE OF WASHINGTON
OFFICE OF GOVERNOR JAY INSLEE

PROCLAMATION BY THE GOVERNOR
AMENDING PROCLAMATION 20-05, et seq.

21-14

COVID-19 VACCINATION REQUIREMENT

WHEREAS, on February 29, 2020, I issued Proclamation 20-05, proclaiming a State of Emergency for all counties throughout Washington State as a result of the coronavirus disease 2019 (COVID-19) outbreak in the United States and confirmed person-to-person spread of COVID-19 in Washington State; and

WHEREAS, as a result of the continued worldwide spread of COVID-19, its significant progression in Washington State, and the high risk it poses to our most vulnerable populations and our health care system, I have subsequently issued several amendatory proclamations, exercising my emergency powers under RCW 43.06.220 by prohibiting certain activities and waiving and suspending specified laws and regulations, including issuance of Proclamations 20-25, et seq., which limit Washingtonians' ability to participate in certain activities unless certain conditions are met; and

WHEREAS, during early stages of the COVID-19 pandemic, health professionals and epidemiological modeling experts indicated that the spread of COVID-19, if left unchecked, threatened to overwhelm portions of Washington's public and private health-care system; and

WHEREAS, to protect some of our most vulnerable populations – persons in health care facilities, long-term care facilities (which includes nursing homes), and similar congregate care facilities – and to protect our health and congregate care systems themselves, I issued several proclamations imposing heightened protections on workers, residents and visitors in those facilities; and

WHEREAS, although COVID-19 continues as an ongoing and present threat in Washington State, the measures we have taken together as Washingtonians over the past 18 months, including the willingness of most Washingtonians to take advantage of the remarkable, life-saving vaccines being administered throughout the state, have made a difference and have altered the course of the pandemic in fundamental ways; and

WHEREAS, after months of improving COVID-19 epidemiological conditions in Washington State, the emergence of highly contagious COVID-19 variants, including the "delta variant" that is at least twice as transmissible as the virus that emerged in late 2019, coupled with the continued significant numbers of unvaccinated people, have caused COVID-19 cases and hospitalizations to rise sharply among unvaccinated populations and have resulted in breakthrough infections in some fully vaccinated individuals; and

WHEREAS, COVID-19 vaccines are effective in reducing infection and serious disease, widespread vaccination is the primary means we have as a state to protect everyone, including persons who cannot be vaccinated for medical reasons, youth who are not eligible to receive a vaccine, immunocompromised individuals, and vulnerable persons including persons in health care facilities, long-term care facilities and other congregate care facilities from COVID-19 infections; and

WHEREAS, widespread vaccination is also the primary means we have as a state to protect our health care system, to avoid the return of stringent public health measures, and to put the pandemic behind us; and

WHEREAS, COVID-19 vaccinations have been available in Washington State from December 2020 to the present, and since April 15, 2021, all Washingtonians over the age of 16 have been eligible to receive free COVID-19 vaccinations from a wide variety of providers at many locations; and

WHEREAS, as of August 4, 2021, nearly 4.4 million Washingtonians, about 70% of those eligible and 58% of the total population, had initiated their vaccine series, leaving 2.1 million eligible Washingtonians who were unvaccinated; and

WHEREAS, according to the CDC, as of August 1, 2021, approximately 67% of staff in Washington state nursing homes were fully vaccinated; and

WHEREAS, healthcare workers face COVID-19 exposures in a variety of healthcare settings, with those involving direct patient care likely at higher risk; and

WHEREAS, COVID-19 vaccines are safe and effective. COVID-19 vaccines were evaluated in clinical trials involving tens of thousands of participants and met the U.S. Food & Drug Administration's rigorous scientific standards for safety, effectiveness, and manufacturing quality needed to support emergency use authorization; and, to date, more than 346 million doses of COVID-19 vaccines have been given in the United States with 8.2 million of those doses administered in Washington, and serious safety problems and long-term side effects are rare; and

WHEREAS, on July 6, 2021, the Office of Legal Counsel of the United State Department of Justice issued a legal opinion stating that federal and state governments were not prohibited by federal law

from imposing vaccination mandates, even when the only vaccines available are those authorized under U.S. Food and Drug Administration Emergency Use Authorizations; and

WHEREAS, on July 26, 2021, approximately 60 medical groups, including the American Medical Association, the American College of Physicians, the American Academy of Pediatrics, the American Academy of Family Physicians, the American Nurses Association, the American Academy of Physician Assistants, the Association of Professionals in Infection Control and Epidemiology, the American Public Health Association, the Infectious Diseases Society of America LeadingAge, the National Hispanic Medical Association, the National Medical Association, and the Society of Infectious Disease Pharmacists, issued a memorandum supporting mandatory, universal vaccination of all public and private health care and long-term care workers, noting that such a requirement is the "fulfillment of the ethical commitment of all health care workers to put patients as well as residents of long-term care facilities first and take all steps necessary to ensure their health and well-being"; and on August 2, 2021, the Washington State Society of Post-Acute and Long-Term Care Medicine submitted a letter in support of the above noted July 26, 2021 memorandum; and

WHEREAS, on July 15, 2021, the American College of Obstetricians and Gynecologists, together with the Society for Maternal-Fetal Medicine, posted a formal opinion stating that medical professionals have an ethical obligation to be vaccinated against COVID-19 to prevent the spread of harmful infectious diseases, and that women who are or may become pregnant should be vaccinated against COVID-19; and

WHEREAS, it is the duty of every employer to protect the health and safety of employees by establishing and maintaining a healthy and safe work environment and by requiring all employees to comply with health and safety measures; and

WHEREAS, state employees live in and provide services to the public in every county in our state, and many interact with the public on a regular basis, and they all interact with some portion of the community at large to varying degrees before and/or after state work hours; and

WHEREAS, to further our individual and collective duty to reduce the spread of COVID-19 in our communities, I am requiring all employees, on-site independent contractors, volunteers, goods and services providers, and appointees of designated state agencies to be fully vaccinated against COVID-19 on or before October 18, 2021; and

WHEREAS, the worldwide COVID-19 pandemic and its persistence in Washington State continue to threaten the life and health of our people as well as the economy of Washington State, and remain a public disaster affecting life, health, property or the public peace; and

WHEREAS, the Washington State Department of Health continues to maintain a Public Health Incident Management Team in coordination with the State Emergency Operations Center and other supporting state agencies to manage the public health aspects of the incident; and

WHEREAS, the Washington State Military Department Emergency Management Division, through the State Emergency Operations Center, continues coordinating resources across state government to support the Department of Health and local health officials in alleviating the impacts to people, property, and infrastructure, and continues coordinating with the state Department of Health in assessing the impacts and long-term effects of the incident on Washington State and its people; and

NOW, THEREFORE, I, Jay Inslee, Governor of the state of Washington, as a result of the above noted situation, and under Chapters 38.08, 38.52 and 43.06 RCW, do hereby proclaim and order that a State of Emergency continues to exist in all counties of Washington State, that Proclamation 20-05, as amended, remains in effect, and that, to help preserve and maintain life, health, property or the public peace pursuant to RCW 43.06.220(1)(h), and (3), I hereby prohibit, subject to the conditions, exceptions, and circumstances set forth below, the following activities:

1. Prohibitions. This order prohibits the following:

    a. Any Worker from engaging in work for a State Agency after October 18, 2021 if the Worker has not been fully vaccinated against COVID-19;
    b. Any State Agency from permitting any Worker to engage in work for the agency after October 18, 2021 if the Worker has not been fully vaccinated against COVID-19 and provided proof thereof to the agency;
    c. Any Health Care Provider from failing to be fully vaccinated against COVID-19 after October 18, 2021; and
    d. Any individual or entity that operates a Health Care Setting from permitting a Health Care Provider to engage in work for the individual or entity as an employee, contractor, or volunteer after October 18, 2021 if the Health Care Provider has not been fully vaccinated against COVID-19 and provided proof thereof to the individual or entity. Providers who do not work in a Health Care Setting must provide proof of vaccination to the operator of the facility in which the Provider works, if any, or, if requested, to a lawful authority. A lawful authority includes, but is not limited to, law enforcement, local health jurisdictions, and the state Department of Health.

2. Exemptions from Vaccine Requirement.

    a. Health Care Providers and Workers for State Agencies are not required to get vaccinated against COVID-19 if they are entitled under the Americans With Disabilities Act (ADA), Title VII of the Civil Rights Act of 1964 (Title VII), the Washington Law Against Discrimination (WLAD), or any other applicable law to a disability-related reasonable accommodation or a sincerely held religious belief accommodation to the requirements of this order. Nothing herein precludes individuals or entities for which Health Care Providers work as employees, contractors, or volunteers and State Agencies from providing disability-related reasonable accommodations and religious accommodations to the requirements of this order as required by the laws noted above. As provided in the ADA, Title VII, and the WLAD, individuals or entities for which Health Care Providers work as

employees, contractors, or volunteers and State Agencies are not required to provide such accommodations if they would cause undue hardship.

b. To the extent permitted by law, before providing a disability-related reasonable accommodation to the requirements of this order, individuals or entities for which Health Care Providers work as employees, contractors, or volunteers and State Agencies must obtain from the individual requesting the accommodation documentation from an appropriate health care or rehabilitation professional authorized to practice in the State of Washington stating that the individual has a disability that necessitates an accommodation and the probable duration of the need for the accommodation.

c. To the extent permitted by law, before providing a sincerely held religious belief accommodation to the requirements of this Order, individuals or entities for which Health Care Providers work as employees, contractors, or volunteers and State Agencies must document that the request for an accommodation has been made and the document must include a statement regarding the way in which the requirements of this order conflict with the religious observance, practice, or belief of the individual.

3. Acceptable Proof of Full Vaccination Against COVID-19: Where required above, Workers for State Agencies and Health Care Providers must provide proof of full vaccination against COVID-19 by providing one of the following:
   a. CDC COVID-19 Vaccination Record Card or photo of the card;
   b. Documentation of vaccination from a health care provider or electronic health record; or
   c. State immunization information system record.

   Personal attestation is not an acceptable form of verification of COVID-19 vaccination.

4. Public and Private Entities and Employers May Exceed These Requirements: Nothing in this order prohibits individuals or entities employing or using the services of Health Care Providers and State Agencies from implementing requirements that exceed the requirements of this Order.

5. Definitions.
   a. "Worker":
      - For purposes of this order, "worker" includes:
        - A person engaged to work as an employee, independent contractor, service provider, volunteer, or through any other formal or informal agreement to provide goods or services, whether compensated or uncompensated, but does not include a visitor or patron;
        - The director, secretary, or other executive officer of a State Agency;
        - A person appointed to serve on a board, commission, or similar body that is an executive cabinet agency listed at https://www.governor.wa.gov/office-governor/office/executive-cabinet or

a small cabinet agency listed at https://www.governor.wa.gov/office-governor/office/small-cabinet.

- The following exceptions apply to the definition of "worker":
  - Independent contractors, and any of their workers, are exempt from this order unless any provision of the contract to provide goods or services requires work to be performed in person and on site, regardless of frequency, whether other workers are present, or any contingent nature of that requirement.
  - For any State Agency that is listed as an agency under the authority of a board, council, or commission at https://ofm.wa.gov/sites/default/files/public/publications/2021_State_Org_Chart.pdf and that is not also listed as an executive cabinet agency at https://www.governor.wa.gov/office-governor/office/executive-cabinet or a small cabinet agency at https://www.governor.wa.gov/office-governor/office/small-cabinet, only the State Agency's compensated employees are "workers" subject to the requirements of this proclamation.

b. "Health Care Provider" includes:
   - Individuals with credentials listed in the Healthcare Professional Credentialing Requirements list;
   - Individuals who are permitted by law to provide health care services in a professional capacity without holding a credential;
   - Long-term care workers unless specifically excluded in this order; and
   - Workers in any Health Care Setting, as defined herein.

   "Health Care Provider" does not include, for purposes of this order:
   - Individual providers, as defined in RCW 74.39A.240;
   - Providers of personal care in a person's home, such as home care, home health or hospice care;
   - Providers who are not actively practicing or providing services; and
   - Providers who provide services only at one or more of the settings that are expressly excluded from the list of Health Care Settings under this order.

c. "Health Care Setting" is any public or private setting that is primarily used for the delivery of in-person health care services to people, except as specifically exempted below. If located at a facility that is primarily used for the delivery of health-care services, such as a hospital, then the entire facility is a Health Care Setting. If located at a facility that is primarily used for another purpose, such as a pharmacy within a grocery store, school nurse's office, or vaccination clinic within a business establishment, the Health Care Setting includes only the areas that are primarily used for the delivery of health care and the areas regularly occupied by Health Care Providers and people seeking care, but not the other areas of the facility.

"Health Care Setting" includes, but is not limited to:

- Acute care facilities, including, but not limited to, hospitals;
- Long-term acute care facilities;
- Inpatient rehabilitation facilities;
- Inpatient behavioral health facilities, including, but not limited to, evaluation and treatment facilities, residential treatment facilities, secure detox facilities;
- Residential long-term care facilities, including, but not limited to, nursing homes, assisted living facilities, adult family homes, settings where certified community residential services and supports are provided, and enhanced services facilities;
- Mobile clinics or other vehicles where health care is delivered;
- Outpatient facilities, including, but not limited to, dialysis centers, physician offices, and behavioral health facilities (including offices of psychiatrists, mental health counselors, and substance use disorder professionals);
- Dental and dental specialty facilities;
- Pharmacies (not including the retail areas);
- Massage therapy offices (this includes designated areas where massage is administered within non-health care settings like spas and wellness/fitness centers);
- Chiropractic offices;
- Midwifery practices and stand-alone birth centers;
- Isolation and/or quarantine facilities;
- Ambulatory surgical facilities;
- Urgent care centers; and
- Hospice care centers.

"Health Care Setting" does not include:

- Settings where sports and spectator events or other gatherings are held (including when credentialed athletic trainers are providing care to players), other than areas primarily used for the delivery of health care services, such as designated first aid areas (which are Health Care Settings);
- Department of Children, Youth & Families (DCYF)-licensed foster homes that do not primarily provide health care services;
- Research facilities where no health care is delivered to people;
- Veterinary health care settings;
- Animal control agencies; and
- Non-profit humane societies.

d. "State Agency" includes:

- Every agency listed at https://www.governor.wa.gov/office-governor/office/executive-cabinet;
- Every agency listed at https://www.governor.wa.gov/office-governor/office/small-cabinet; and

- Every agency under the authority of a board, council, or commission listed at https://ofm.wa.gov/sites/default/files/public/publications/2021_State_Org_Chart.pdf except the State Board for Community and Technical Colleges and the governing boards of four-year institutions of higher education.

e. "Fully Vaccinated against COVID-19": A person is fully vaccinated against COVID-19 two weeks after they have received the second dose in a two-dose series of a COVID-19 vaccine authorized for emergency use, licensed, or otherwise approved by the FDA (e.g., Pfizer-BioNTech or Moderna) or two weeks after they have received a single-dose COVID-19 vaccine authorized for emergency use, licensed, or otherwise approved by the FDA (e.g., Johnson & Johnson (J&J)/Janssen.

ADDITIONALLY, the specific prohibitions in this Proclamation are severable and do not apply to the extent that compliance with a prohibition would violate (1) any U.S. or Washington constitutional provision; (2) federal statutes or regulations; (3) any conditions that apply to the state's receipt of federal funding; (4) state statutes; or (5) applicable orders from any court of competent jurisdiction.

ADDITIONALLY, nothing in this Proclamation limits otherwise applicable requirements related to personal protective equipment, personnel training, and infection control policies and procedures.

I again direct that the plans and procedures of the *Washington State Comprehensive Emergency Management Plan* be implemented throughout state government. State agencies and departments are directed to continue utilizing state resources and doing everything reasonably possible to support implementation of the *Washington State Comprehensive Emergency Management Plan* and to assist affected political subdivisions in an effort to respond to and recover from the COVID-19 pandemic.

I continue to order into active state service the organized militia of Washington State to include the National Guard and the State Guard, or such part thereof as may be necessary in the opinion of The Adjutant General to address the circumstances described above, to perform such duties as directed by competent authority of the Washington State Military Department in addressing the outbreak. Additionally, I continue to direct the Department of Health, the Washington State Military Department Emergency Management Division, and other agencies to identify and provide appropriate personnel for conducting necessary and ongoing incident related assessments.

Violators of this order may be subject to criminal penalties pursuant to RCW 43.06.220(5). Further, if people fail to comply with the required facial coverings, social distancing and other protective measures while engaging in this phased reopening, I may be forced to reinstate the prohibitions established in earlier proclamations.

This order is effective immediately. Unless extended or amended, upon expiration or termination of this amendatory proclamation the provisions of Proclamation 20-25, et seq., will continue to be in

effect until the state of emergency, issued on February 29, 2020, pursuant to Proclamation 20-05, is rescinded.

Signed and sealed with the official seal of the state of Washington on this 9th day of August, A.D., Two Thousand and Twenty-One at Olympia, Washington.

By:

/s/
Jay Inslee, Governor

BY THE GOVERNOR:

/s/
Secretary of State

EX. 2

CITY OF ISSAQUAH WASHINGTON

ADMINISTRATIVE ORDER

Date: June 30, 2021

To: City Employees
Through: Stephanie Johnson, Human Resources Director
From: Wally Bobkiewicz, City Administrator
Mary Lou Pauly, Mayor

CC: NScott Stewart, Municipal Court Judge
AFSCME Council 2
IPOA
IPSSA
Teamsters 117
Teamsters 763

Re: **Update: COVID-19 (Coronavirus) Protection Plan & Policy Updates – July 1, 2021**

Due to the COVID-19 (coronavirus) pandemic, the City has adopted policies and practices to ensure the health and safety of our employees. These policy decisions have been made in response to the Governor's Stay Home, Stay Healthy Order and in consideration of the guidance of the Centers for Disease Control and Prevention (CDC) and Public Health – Seattle & King County.

The purpose of this Administrative Order is to inform employees of the City's continued COVID-19 (coronavirus) protection plan and reinforce policy updates effective as of July 1, 2021 as the State of Washington reopens July 1 and the City reopens July 6, 2021. The City will work with its labor representatives to discuss/bargain the items presented below on behalf of represented employees as needed.

Vaccinations

To date, over 75% of staff have reported COVID-19 vaccinations, we thank you. The City will continue to find ways to encourage the remaining 25% of staff to vaccinate. The COVID-19 pandemic is not over, but vaccination is one of the most important tools to end the pandemic. As public servants, we hope unvaccinated employees understand the choice to vaccinate should also be made in consideration of the health and safety of their coworkers, their family and friends and the public we serve. As such, the City strongly desires for all employees to be inoculated with the COVID-19 vaccination for the health and safety of all. Exemptions will be considered for those with a medical or religious reason for not vaccinating.

New Hires

Effective July 1, 2021 New Hires to the City will be required as a condition of employment to be fully vaccinated for COVID-19. The following language has been placed on all the City's vacant job postings:

Effective July 1, 2021, all new hires to the City will be required as a condition of employment to be fully vaccinated for COVID-19 prior to start date. If you have questions or need an accommodation for this requirement due to a disability or religious reason, you can speak to our HR Department for further information.

Mask Use

In recognition of an increase in our Citywide vaccination percentages, the following updates will be made to the City's Mask Use policies:

- Fully vaccinated** employees will no longer be required to wear a face covering in City buildings.
    - If you are fully vaccinated and have a condition or taking medications that weaken your immune system, you may need to keep taking steps to protect yourself, like wearing a mask. Talk to your healthcare provider about steps you can take to manage your health and risks.
- Face coverings will continue to be required in all City buildings for unvaccinated employees. This includes but is not limited to entry and exit from a building, hallways, restrooms, lunchrooms and conference rooms.
    - Face coverings will be in accordance with the recommendations of the CDC for unvaccinated people.

EX. 3

Religious Accommodation Request Form

Part 1: To be completed by employee

Name: Cheyanne Dixson_ Department: Police Department

Date of request: 8/17/2021

1. Requested accommodation (job change, schedule change, vaccination exemption, etc.):

   Vaccination exemption

2. Length of time the accommodation is needed:

   Lifetime

3. Describe the religious belief or practice that necessitates this request for accommodation:

   Christian religion

1. Betrayal of faith – I have faith that my Savior is my ultimate healing power and as such, consider the acceptance of vaccines on a healthy body as a betrayal of faith. I feel that you cannot believe the Lord heals all diseases while 'hedging your bets' with vaccines.
   In James 5:14-15, the Apostle James warned: "is anyone among you sick? He should summon the presbyters of the church, and they should pray over him and anoint [him] with oil in the name of the Lord, and the prayer of faith will save the sick person."

2. Corruption of blood- I see the vaccine ingredients as corrupting the sanctity of the blood with the unnatural components not created by the hand of God.
   "For the life of the flesh is in the blood: and I have given it to you upon the altar to make an atonement for your souls: for it is the blood that maketh an atonement for the soul. (Leviticus 17:11)"

3. Aborted fetal tissue- this is used in the manufacture or some of the vaccines; this means that abortion is involved in the manufacture of vaccine products. Innocent souls have died for the creation of these products. This points to an industry that disrespects and disregards the sanctity of life. In fact, the industry profits from the abortion industry.
   "Donum Vitae (I, 4: 1987) that "The corpses of human embryos and fetuses, whether they have been deliberately aborted or not, must be respected just as the remains of other human beings."

4. In some cases, the City will need to obtain additional information and/or documentation about your religious practice(s) or belief(s). We may need to discuss the nature of your religious belief(s), practice(s) and accommodation with your religion's spiritual leader (if applicable) or religious scholars to address your request for an exception.

   If requested, can you provide documentation to support your belief(s) and need for an accommodation? _____ Yes X_____ No

   If no, please explain why:

   I don't wish to disclose this information as it is private.

5. Describe any alternate accommodations that might address your needs:

N/A

Verification and Accuracy

I verify that the information I am submitting in support of my request for an accommodation is complete and accurate to the best of my knowledge, and I understand that any intentional misrepresentation contained in this request may result in disciplinary action.

I have read and understand the City of Issaquah's policy on religious accommodation (provided below). My religious beliefs and practices, which result in this request for a religious accommodation, are sincerely held. I understand that the accommodation requested above may not be granted if it is not reasonable, if it poses a direct threat to the health and/or safety of others in the workplace and/or to me, or if it creates an undue hardship on the City. I understand that the City of Issaquah may need to obtain supporting documentation regarding my religious practice and beliefs to further evaluate my request for a religious accommodation.

Employee signature: Cheyanne Dixson Date: 8/17/21

City of Issaquah Personnel Policies

2.1.3

The City complies fully with its duty to provide reasonable accommodation of any applicant's or employee's sincerely held religious beliefs, unless the City believes such an accommodation would create an undue hardship, cannot be accommodated due to contractual commitments that cannot be or will not be waived, or is contrary to law or the City's commitment to diversity. For example, if an employee seeks a certain work schedule, or to dress or attire himself/herself in a way that varies from any dress code adopted by the City, the employee will inform the department director of the religious practice and a request for reasonable accommodation.

Part 2 – To be completed by Human Resources Representative

Date this Request Form Received in Human Resources: _____

1. Interactive Discussion Date(s) if applicable:

2. Exemption/Accommodation granted? _____Yes _____ No

3. Describe Exemption/Accommodation:

4. If Exemption/Accommodation granted, list required alternative safety precautions required:

5. If Exemption/Accommodation not granted, explain why:

Name of Representative: _____

Signature of Representative: _____

Date: _____

CITY OF ISSAQUAH WASHINGTON

Human Resources
1775 – 12th Ave. NW | P.O. Box 1307
Issaquah, WA 98027
PH: 425-837-3040
FAX: 425-837-3046
issaquahwa.gov

October 15, 2021

Cheyanne Dixson
cheyanned@issaquahwa.gov

Dear Cheyanne:

The Human Resources Department has received your request for a religious exemption from the mandatory vaccination requirement imposed by the City Administrator and Mayor's Administrative Order dated August 20, 2021. The Order mandates that all City employees must be fully vaccinated for COVID by October 18, 2021 or be exempt and accommodated based on a medical disability or sincerely held religious belief.

On October 1, the City provided you with a letter that outlined the process for religious exemption and accommodation as well as the framework under which accommodation would be considered. In that letter, the City accepted that your religious exemption was based on a sincerely held religious belief. The letter also indicated that, while your religious exemption was granted, the City needed more time to do a thorough analysis of whether a reasonable accommodation was available and whether that accommodation posed an undue hardship.

In addition, the City continues to bargain with the Issaquah Police Officers Association (IPOA) for impacts to staff as a result of the vaccination mandate. The City agreed to a reasonable time extension to bargain impacts for staff and meet again next week.

The City has concluded that it cannot reasonably accommodate you without posing an undue hardship on the City.

However, given the vaccination mandate is Monday, October 18 and you've been waiting to hear from the City about reasonable accommodation, this letter is to inform you that we believe we can reasonably accommodate a limited extension of time from the date of this letter through December 15, 2021 for you to be fully vaccinated forCOVID-19, provided that you will be subject to additional safety protocols as described below:

- You will be required to take a COVID-19 test two times per week, once on your first workday of the week, and once mid-week. These tests will be provided be the City, testing will be performed on site on paid work time, and they will be self-administered under the direct supervision of your supervisor or manager.

- You will be required to wear an N95 mask at all times while performing work for the City or on City property.
- In order to remain masked at all times, you will not eat in City facilities but must eat meals in your own vehicle, outside (in which case you may be unmasked on City property), or off site.

Failure to adhere to the direction provided above may result in reconsideration of this accommodation by the City and may result in progressive discipline, up to and including termination.

The limited extension of time through December 15, 2021 is granted in order to give you additional time to vaccinate, recognizing that you are receiving this letter very close to the implementation date of the City's COVID-19 vaccination mandate. This also provides the City additional time to bargain impacts to you as a member of IPOA.

The City finds that it is not able to grant an accommodation beyond December 15 because such an accommodation would pose an undue hardship. The City reaches this determination in considering the daily direct contact you have with the public, the contact you have with other employees, developments in the virus that have made it more contagious and easier to transmit, the ongoing cost of testing (both in terms of cost of tests and in terms of work time and efficiency costs), and in consideration of the City's plan to begin reopening offices both to staff and the public starting November 1, 2021 to be followed by a larger reopening in January 2022. If you wish to remain employed beyond December 15, 2021, you must be fully vaccinated.

Please let us know in writing if the above-described accommodation is acceptable by Tuesday, October 19.

Please do not hesitate to contact me if you have any questions about the above, I can be reached directly at 425-837-3043.

Sincerely,

Stephanie Johnson
Human Resources Director

Cc:
Personnel File
Scott Behrbaum, Police Chief
Wally Bobkiewicz, City Administrator

CITY OF
ISSAQUAH
WASHINGTON

Executive Office
130 E. Sunset Way | P.O. Box 1307
Issaquah, WA 98027
425-837-3020
issaquahwa.gov

February 2, 2022 ~ Delivered by City email ~

Cheyanne Rosa
cheyanned@issaquahwa.gov

Re: Notice of Intent to Separate Employment

Dear Cheyanne:

On August 10, 2021 Mayor Pauly and City Administrator Bobkiewicz announced a COVID-19 vaccine mandate effective October 18, 2021. On October 1, 2021 you were granted a religious exemption, but informed that accommodations were still under consideration. On October 15, 2021 you were informed the City concluded that it cannot reasonably accommodate you without posing an undue hardship. However, you were granted a temporary accommodation through December 15, 2021 to consider and provide sufficient time to vaccinate as a condition of future employment.

On November 10, 2021 the Issaquah Police Officers Association reached an agreement with the City to offer you an extended accommodation through February 16, 2022.

To date, the City has not received proof of vaccination from you. As a result, I regret to inform you the City intends for you to separate employment.

Loudermill Hearing

For those Employees who are being separated due to the City's vaccine mandate, the City will be offering an opportunity for the Employee to be heard as to why such action should not occur as scheduled. Hearings will include the City Administrator, your Department Director and Human Resources staff. Hearings may be conducted remotely depending on the circumstances. The City will consider your input before final decisions are made. If you wish to schedule a meeting, please contact Human Resources at hr@issaquahwa.gov to schedule a time no later than February 9, 2022.

Reinstatement

Should you wish to reconsider vaccination, the City will reconsider your return to your position if it has not been filled and you provide proof of vaccination.

Your employment will end in good standing and we wish you the best of luck in your future endeavors. If you have further questions or need additional information, you may contact Stephanie Johnson, Human Resources Director at 425-837-3043.

Sincerely,

Wally Bobkiewicz
City Administrator

CC: Stephanie Johnson, Human Resources Director
Paula Schwan, Interim Police Chief
Human Resources
Payroll

Re: EEOC Request for Information: 551-2022-02016

Cheyanne S. Dixson <cheyanned@issaquahwa.gov>

Mon 2/7/2022 9:42 PM

To: SEATTLEEEOC <seattleeeoc@eeoc.gov>

Cc: cheyanne dixson <CHEYANNED2020@GMAIL.COM>

8 attachments (2 MB)

Police Officer Job Description.pdf; Religious Exemption.pdf; Dixson- Religious Exemption-2.pdf; Mandatory Vaccination - Intent to Separate - Rosa, Cheyanne.pdf; Memorandum Agreement.pdf; Dixson, Cheyanne - Religious Accommodation Letter - 10-15-21-signed.pdf; email from HR.PNG; Hazard pay email.PNG;

1. **Full job title and employment start date and current employment status (end date, if applicable). Feb 16,2017- Current. The termination date due to the vaccine mandate is Feb 16,2022.**
2. **Provide a copy of your position description or describe your position.**
   a. **Are you currently or were you teleworking? If so, for how long? Please see attached. I'm currently employed until Feb 16, 2022. My job position is patrol.**
3. **Provide a copy of (or describe in detail) your religious accommodation request, how you requested the religious accommodation, and the date of your request. Please see attached.**
4. **Provide a copy of (or describe in detail) your employer's response to the request for religious accommodation and the date you received the response. Please see attached.**
5. **The charge of discrimination will state your religion/religious belief. Please state how you want your religion or religious belief identified on the charge of discrimination.**

I was informed on 10/18/2021 that I would more than likely not be able to be provided accommodations because it would place an "undue hardship for the city". The following is a direct quote from the HR representative "The City accepts your request for religious exemption due to your sincerely held religious belief. In doing so, the City has accepted the position that one's sincerely held religious beliefs need not align with the beliefs of an organized religion or religious leader. As mentioned above, the next step of the process involves an analysis whether an unvaccinated employee in your position can be accommodated in the workplace. At this time, the City does not believe that an accommodation can be made without undue hardship, but the City needs more time in making such an evaluation" (you will find this in the attached religious exemption). Shortly after I received an email stating my employment was extended through 12/15/2021 if I followed their accommodations. However, I would no longer be employed after 12/15 because it would cause "undue hardship for the city". I did agree to follow their accommodations. The concern was the accommodation was blanket covering all employees who needed an accommodation. But, it was not individually accommodating. I didn't receive this information in writing but, I was extended until 2/16/2022 due to lack of staffing (please see attached email labeled email from HR).

Initially, my place of employment wouldn't allow reasonable accommodation for my sincerely held religious beliefs but would extend me because they had staffing issues? Additionally, the City of Issaquah Employees received hazard pay for working through the pandemic as long as they would be employed until 2/28/22. The hazard pay totaled to about $2000. The city paid employees for their hazard pay on 1/25/22. However, I never received a hazard paycheck. From my understanding the police employees (including myself) never

signed an agreement to accept or deny the hazard pay (it was just provided due to an MOU agreement, see email from my union).

I was informed by the union representative that if employees didn't stay until Feb 28,2022 they would have to return the money. However, I never received my hazard pay due to the assumption that I wouldn't get a vaccine in order to maintain employment. To my knowledge, I was the only employee in the city to not receive the eligible hazard pay.

6. **Provide any additional information about this situation that you think may be relevant.**

I feel as though I have been harassed by my employers for wanting to decide what I do with my body. I had an zoom meeting with HR regarding my religion and why it went against the vaccine mandate. I thought the questions were very intrusive and a violation of my rights. I have an audio recording if needed and I received permission from both parties to record. I have sent emails to city council and communicated with my chief about wanting to stay employed but had a tough decision on deciding how to handle the vaccine mandate.

I also want to note I cc'd my personal email because I will be terminated soon. Moving forward please use the cc'd email.

Officer C.Dixson #1212
130 E Sunset Way
PO Box 1307
Issaquah, WA 98027
(desk) 425-837-3200
(fax) 425-837-3209
cheyanned@issaquahwa.gov

THE INFORMATION CONTAINED IN THIS COMMUNICATION IS CONFIDENTIAL AND INTENDED ONLY FOR THE USE OF THE RECIPIENT NAMED ABOVE, AND MAY BE LEGALLY PRIVILEGED AND EXEMPT FROM DISCLOSURE UNDER APPLICABLE LAW. IF THE READER OF THIS MESSAGE IS NOT THE INTENDED RECIPIENT, YOU ARE HEREBY NOTIFIED THAT ANY DISSEMINATION, DISTRIBUTION OR COPYING OF THIS COMMUNICATION IS STRICTLY PROHIBITED. IF YOU HAVE RECEIVED THIS COMMUNICATION IN ERROR, PLEASE RESEND IT TO THE SENDER AND DELETE THE ORIGINAL MESSAGE AND COPY OF IT FROM YOUR COMPUTER SYSTEM. OPINIONS, CONCLUSIONS AND OTHER INFORMATION IN THIS MESSAGE THAT DO NOT RELATE TO OUR OFFICIAL BUSINESS SHOULD BE UNDERSTOOD AS NEITHER GIVEN NOR ENDORSED BY THE CITY.

From: SEATTLEEEOC <seattleeeoc@eeoc.gov>
Sent: Monday, February 7, 2022 3:04 PM

To: Cheyanne S. Dixson <cheyanned@issaquahwa.gov>
Subject: EEOC Request for Information: 551-2022-02016

This email acknowledges the inquiry you submitted with the Equal Employment Opportunity Commission ("EEOC"). Before the EEOC can initiate an investigation, more information is needed about your allegations. You will need to provide all the requested information within 7 days. Failure to provide all requested information may result in further processing delays.

Once this information is received, your inquiry will be re-opened, your information reviewed, and we will draft a charge of discrimination for your review and signature. This review and charge drafting process may take a couple weeks once your response is received and we appreciate your patience. Additionally, once all the information is reviewed should more information be needed, staff will reach out to you directly.

REQUEST FOR INFORMATION- Provide your responses below and/or attach the requested documents to your reply to this email. Please only submit **one (1) email** in response, as this email inbox receives a significant number of emails each day.

1. **Full job title and employment start date and current employment status (end date, if applicable).**
2. **Provide a copy of your position description or describe your position.**
    a. **Are you currently or were you teleworking? If so, for how long?**
3. **Provide a copy of (or describe in detail) your religious accommodation request, how you requested the religious accommodation, and the date of your request.**
4. **Provide a copy of (or describe in detail) your employer's response to the request for religious accommodation and the date you received the response.**
5. **The charge of discrimination will state your religion/religious belief. Please state how you want your religion or religious belief identified on the charge of discrimination.**
6. **Provide any additional information about this situation that you think may be relevant.**

If you do not want to complete the filing process, no additional action is required on your part. You are advised that the EEOC will take no additional action unless we hear back from you with all requested information within 7 days.

As a reminder, there are strict time limits for filing a charge of employment discrimination. In most cases, within the Seattle Office's jurisdiction, a charge must be filed within 300 days from the date of harm to protect your rights. If you do not file a charge of discrimination within the time limits, you will lose your rights and the EEOC will not take further action. For more information about the time limits for filing an EEOC Charge of Discrimination, please see http://www.eeoc.gov/employees/timeliness.cfm.

Sincerely,

Equal Employment Opportunity Commission
Seattle Field Office
909 First Avenue, Suite 400
Seattle, WA 98104-1061
P (206) 576-3000
F (206) 220-6911
www.eeoc.gov

EX. 4

CITY OF ISSAQUAH WASHINGTON

Human Resources
1775 – 12th Ave. NW | P.O. Box 1307
Issaquah, WA 98027
PH: 425-837-3040
FAX: 425-837-3046
issaquahwa.gov

October 15, 2021

Cheyanne Dixson
cheyanned@issaquahwa.gov

Dear Cheyanne:

The Human Resources Department has received your request for a religious exemption from the mandatory vaccination requirement imposed by the City Administrator and Mayor's Administrative Order dated August 20, 2021. The Order mandates that all City employees must be fully vaccinated for COVID by October 18, 2021 or be exempt and accommodated based on a medical disability or sincerely held religious belief.

On October 1, the City provided you with a letter that outlined the process for religious exemption and accommodation as well as the framework under which accommodation would be considered. In that letter, the City accepted that your religious exemption was based on a sincerely held religious belief. The letter also indicated that, while your religious exemption was granted, the City needed more time to do a thorough analysis of whether a reasonable accommodation was available and whether that accommodation posed an undue hardship.

In addition, the City continues to bargain with the Issaquah Police Officers Association (IPOA) for impacts to staff as a result of the vaccination mandate. The City agreed to a reasonable time extension to bargain impacts for staff and meet again next week.

The City has concluded that it cannot reasonably accommodate you without posing an undue hardship on the City.

However, given the vaccination mandate is Monday, October 18 and you've been waiting to hear from the City about reasonable accommodation, this letter is to inform you that we believe we can reasonably accommodate a limited extension of time from the date of this letter through December 15, 2021 for you to be fully vaccinated forCOVID-19, provided that you will be subject to additional safety protocols as described below:

- You will be required to take a COVID-19 test two times per week, once on your first workday of the week, and once mid-week. These tests will be provided be the City, testing will be performed on site on paid work time, and they will be self-administered under the direct supervision of your supervisor or manager.

- You will be required to wear an N95 mask at all times while performing work for the City or on City property.
- In order to remain masked at all times, you will not eat in City facilities but must eat meals in your own vehicle, outside (in which case you may be unmasked on City property), or off site.

Failure to adhere to the direction provided above may result in reconsideration of this accommodation by the City and may result in progressive discipline, up to and including termination.

The limited extension of time through December 15, 2021 is granted in order to give you additional time to vaccinate, recognizing that you are receiving this letter very close to the implementation date of the City's COVID-19 vaccination mandate. This also provides the City additional time to bargain impacts to you as a member of IPOA.

The City finds that it is not able to grant an accommodation beyond December 15 because such an accommodation would pose an undue hardship. The City reaches this determination in considering the daily direct contact you have with the public, the contact you have with other employees, developments in the virus that have made it more contagious and easier to transmit, the ongoing cost of testing (both in terms of cost of tests and in terms of work time and efficiency costs), and in consideration of the City's plan to begin reopening offices both to staff and the public starting November 1, 2021 to be followed by a larger reopening in January 2022. If you wish to remain employed beyond December 15, 2021, you must be fully vaccinated.

Please let us know in writing if the above-described accommodation is acceptable by Tuesday, October 19.

Please do not hesitate to contact me if you have any questions about the above, I can be reached directly at 425-837-3043.

Sincerely,

Stephanie Johnson
Human Resources Director

Cc:
Personnel File
Scott Behrbaum, Police Chief
Wally Bobkiewicz, City Administrator

EX. 5

CITY OF ISSAQUAH WASHINGTON

Executive Office
130 E. Sunset Way | P.O. Box 1307
Issaquah, WA 98027
425-837-3020
issaquahwa.gov

February 2, 2022 ~ Delivered by City email ~

Cheyanne Rosa
cheyanned@issaquahwa.gov

Re: Notice of Intent to Separate Employment

Dear Cheyanne:

On August 10, 2021 Mayor Pauly and City Administrator Bobkiewicz announced a COVID-19 vaccine mandate effective October 18, 2021. On October 1, 2021 you were granted a religious exemption, but informed that accommodations were still under consideration. On October 15, 2021 you were informed the City concluded that it cannot reasonably accommodate you without posing an undue hardship. However, you were granted a temporary accommodation through December 15, 2021 to consider and provide sufficient time to vaccinate as a condition of future employment.

On November 10, 2021 the Issaquah Police Officers Association reached an agreement with the City to offer you an extended accommodation through February 16, 2022.

To date, the City has not received proof of vaccination from you. As a result, I regret to inform you the City intends for you to separate employment.

Loudermill Hearing

For those Employees who are being separated due to the City's vaccine mandate, the City will be offering an opportunity for the Employee to be heard as to why such action should not occur as scheduled. Hearings will include the City Administrator, your Department Director and Human Resources staff. Hearings may be conducted remotely depending on the circumstances. The City will consider your input before final decisions are made. If you wish to schedule a meeting, please contact Human Resources at hr@issaquahwa.gov to schedule a time no later than February 9, 2022.

Reinstatement

Should you wish to reconsider vaccination, the City will reconsider your return to your position if it has not been filled and you provide proof of vaccination.

Your employment will end in good standing and we wish you the best of luck in your future endeavors. If you have further questions or need additional information, you may contact Stephanie Johnson, Human Resources Director at 425-837-3043.

Sincerely,



Wally Bobkiewicz
City Administrator

CC: Stephanie Johnson, Human Resources Director
Paula Schwan, Interim Police Chief
Human Resources
Payroll

EX. 4

CITY OF ISSAQUAH WASHINGTON

Executive Office
130 E. Sunset Way | P.O. Box 1307
Issaquah, WA 98027
425-837-3020
issaquahwa.gov

February 14, 2022

~ Delivered to City email address ~

Cheyanne Rosa
cheyanned@issaquahwa.gov

Re: Separation of Employment

Dear Cheyanne:

Since October 18, 2021 you have been under a temporary accommodation as part of your religious exemption to the Mayor's vaccine mandate. Your temporary accommodation allowed you additional time to vaccinate through February 16, 2022 as agreed upon between the City and your labor union, Issaquah Police Officers Association.

On February 2 the City issued you a notice of intent to separate employment as a result of a lack of vaccination data from you after informing you the City had an undue hardship to accommodate you long term.

It is my understanding from City Administrator Bobkiewicz you were offered an opportunity for a Loudermill Hearing which occurred Friday, February 11, 2022.

As a result of all the facts that have been provided to me, your employment with the City will end on February 14, 2022, your last day worked for your rotating shift through February 16, 2022.

Should you wish to reconsider vaccination, the City will reconsider your return to your position if it has not been filled. Your employment will end in good standing and I want to thank you for your dedication to the City of Issaquah.

If you have further questions or need additional information, please contact Stephanie Johnson, Human Resources Director at 425-837-3043 to schedule an exit interview.

Sincerely,

Mary Lou Pauly
Mayor

CC: Wally Bobkiewicz, City Administrator
Paula Schwan, Interim Police Chief
Human Resources
Payroll

EX. 7

U.S. EQUAL EMPLOYMENT OPPORTUNITY COMMISSION

Seattle Field Office
909 First Avenue, Suite 400
Seattle, WA 98104
(206) 576-3000
Website: www.eeoc.gov

DETERMINATION AND NOTICE OF RIGHTS

(This Notice replaces EEOC FORMS 161 & 161-A)

Issued On: 09/26/2022

To: Cheyanne S. Rosa
12619 329th Ave SE
SULTAN, WA 98294
Charge No: 551-2022-02016

EEOC Representative and email: Shannon De Jong
Investigator
shannon.dejong@eeoc.gov

DETERMINATION OF CHARGE

The EEOC issues the following determination: The EEOC will not proceed further with its investigation and makes no determination about whether further investigation would establish violations of the statute. This does not mean the claims have no merit. This determination does not certify that the respondent is in compliance with the statutes. The EEOC makes no finding as to the merits of any other issues that might be construed as having been raised by this charge.

NOTICE OF YOUR RIGHT TO SUE

This is official notice from the EEOC of the dismissal of your charge and of your right to sue. If you choose to file a lawsuit against the respondent(s) on this charge under federal law in federal or state court, **your lawsuit must be filed WITHIN 90 DAYS of your receipt of this notice.** Receipt generally occurs on the date that you (or your representative) view this document. You should keep a record of the date you received this notice. Your right to sue based on this charge will be lost if you do not file a lawsuit in court within 90 days. (The time limit for filing a lawsuit based on a claim under state law may be different.)

If you file a lawsuit based on this charge, please sign-in to the EEOC Public Portal and upload the court complaint to charge 551-2022-02016.

On Behalf of the Commission:

September 26, 2022
Date

for
Elizabeth M. Cannon, Director
Seattle Field Office

cc:

Rachel Turpin
Madrona Law
Rachel@madronalaw.com
14205 SE 36TH ST STE 100
Bellevue, WA 98006

Shannon E Phillips
Summit Law Group PLLC
Shannonp@summitlaw.com
315 5TH AVE S STE 1000
Seattle, WA 98104

Kim Welsh
Summit Law Group
Kimw@summitlaw.com
315 5TH AVE S STE 1000
Seattle, WA 98104

Please retain this notice for your records.

INFORMATION RELATED TO FILING SUIT UNDER THE LAWS ENFORCED BY THE EEOC

*(This information relates to filing suit in Federal or State court **under Federal law**. If you also plan to sue claiming violations of State law, please be aware that time limits may be shorter and other provisions of State law may be different than those described below.)*

IMPORTANT TIME LIMITS – 90 DAYS TO FILE A LAWSUIT

If you choose to file a lawsuit against the respondent(s) named in the charge of discrimination, you must file a complaint in court **within 90 days of the date you *receive* this Notice**. Receipt generally means the date when you (or your representative) opened this email or mail. You should **keep a record of the date you received this notice**. Once this 90-day period has passed, your right to sue based on the charge referred to in this Notice will be lost. If you intend to consult an attorney, you should do so promptly. Give your attorney a copy of this Notice, and the record of your receiving it (email or envelope).

If your lawsuit includes a claim under the Equal Pay Act (EPA), you must file your complaint in court within 2 years (3 years for willful violations) of the date you did not receive equal pay. This time limit for filing an EPA lawsuit is separate from the 90-day filing period under Title VII, the ADA, GINA or the ADEA referred to above. Therefore, if you also plan to sue under Title VII, the ADA, GINA or the ADEA, in addition to suing on the EPA claim, your lawsuit must be filed within 90 days of this Notice **and** within the 2- or 3-year EPA period.

Your lawsuit may be filed in U.S. District Court or a State court of competent jurisdiction. Whether you file in Federal or State court is a matter for you to decide after talking to your attorney. You must file a "complaint" that contains a short statement of the facts of your case which shows that you are entitled to relief. Filing this Notice is not enough. For more information about filing a lawsuit, go to https://www.eeoc.gov/employees/lawsuit.cfm.

ATTORNEY REPRESENTATION

For information about locating an attorney to represent you, go to: https://www.eeoc.gov/employees/lawsuit.cfm.

In very limited circumstances, a U.S. District Court may appoint an attorney to represent individuals who demonstrate that they are financially unable to afford an attorney.

HOW TO REQUEST YOUR CHARGE FILE AND 90-DAY TIME LIMIT FOR REQUESTS

There are two ways to request a charge file: 1) a FOIA Request or 2) a Section 83 request. You may request your charge file under either or both procedures. EEOC can generally respond to Section 83 requests more promptly than FOIA requests.

Since a lawsuit must be filed within 90 days of this notice, please submit your request for the charge file promptly to allow sufficient time for EEOC to respond and for your review. Submit a signed written request stating it is a “FOIA Request” or a “Section 83 Request” for Charge Number 551-2022-02016 to the District Director at Nancy Sienko, 450 Golden Gate Avenue 5 West PO Box 36025, San Francisco, CA 94102.

You can also make a FOIA request online at https://eeoc.arkcase.com/foia/portal/login.

You may request the charge file up to 90 days after receiving this Notice of Right to Sue. After the 90 days have passed, you may request the charge file only if you have filed a lawsuit in court and provide a copy of the court complaint to EEOC.

For more information on submitting FOIA Requests and Section 83 Requests, go to: https://www.eeoc.gov/eeoc/foia/index.cfm.

EX. 8

Washington State Tort Claim Form Packet

Please *carefully read all of the information in this packet* before completing and presenting your Washington State Tort Claim. Tort claims are subject to public disclosure pursuant to RCW 42.56.

NOTE: all documents received by the Office of Risk Management (ORM) become the property of ORM and **will not be returned**. Please keep a copy for your records and do not send original attachments if you may want them returned.

Presenting a Standard Tort Claim Form

RCW 4.92.100 requires citizens to present the Standard Tort Claim form with the Office of Risk Management (ORM). The law also requires ORM to post on its website the Standard Tort Claim form with instructions. In compliance with these requirements and for the convenience of citizens, ORM developed the Washington State Tort Claim Form Packet.

Documents Contained in the Standard Tort Claim Form Packet

1. Instructions for completing the Standard Washington State Tort Claim Form
2. Standard Washington State Tort Claim Form (SF 210)
3. Medical Authorization (only for tort claims involving bodily injury)
4. Vehicle Collision Form (only for tort claims involving vehicle accidents/collisions)
5. Mandatory Medicare Beneficiary Reporting Form

Legal Requirements for Presenting Standard Tort Claim Forms

In order to verify the claim and additional supporting information, the law requires that the Standard Tort Claim form be signed by:

- Claimant; or
- Person holding a written power of attorney from the Claimant; or
- Attorney in fact for the Claimant; or
- Attorney admitted to practice in Washington state on the Claimant's behalf; or
- A court-approved guardian or guardian ad litem on behalf of the Claimant

Present in Person, Mail, Fax or Email the Washington State Tort Claim Form & Supporting Documents to:

Department of Enterprise Services
Office of Risk Management
1500 Jefferson Street SE, MS 41466
Olympia, WA 98504-1466
Phone (360) 407-9199
Fax (360) 407-8022
Email: Claims@des.wa.gov

Business Hours: Monday-Friday, 8:00 a.m. to 5:00 p.m.
Closed on weekends and official state holidays.

INSTRUCTIONS FOR COMPLETING A TORT CLAIM FORM

General Liability Claim Form #SF 210

- ✓ Before filing a Tort Claim, please read these instructions, the Tort Claim form and other appropriate forms in their entirety.
- ✓ Type or print **clearly** in ink and sign the Tort Claim form. Do not staple or tape documents. Do not put in claim form in binders or add divider tabs as all documents must be scanned.
- ✓ Provide all requested information and any available documents or evidence supporting your claim, such as medical records or bills for personal injuries, photographs, proof of ownership for property damages, receipts for property value, etc.
- ✓ If the requested information cannot be supplied in the space provided, please use additional blank sheets so your claim can be easily read and understood.

- ✓ The following are *examples* on how to complete the Tort Claim Form #SF 210:

1) Smith, Karen Michelle – 02/20/1965
2) #809234 (for use by Department of Corrections inmates only)
3) 1234 College Way NW, Apt. 56, Seattle WA 98178
4) PO Box 910, Seattle WA 98178
5) Same (or residence at the time of incident)
6) (206) 123-4567 – (206) 987-6543
7) KMSmith@hotmail.com
8) 8/9/2010 8:00 a.m.,
9) If the incident that caused the damages occurred over a period of time, please provide the beginning time and the ending time in item 8.
10) Washington, Thurston, Tumwater, Campus of South Puget Sound Community College, Building number 22.
11) I-5, Southbound, Milepost 109, near the Martin Way Exit
12) Washington State Department of Transportation, Highway
13) Smith, Thomas Arthur, 1234 College Way NW, Apt. 56, Seattle WA 98178 (360) 456-3456; Tow Truck Driver, Nisqually Towing
14) Unknown
15) List all other witnesses having knowledge of the incident in question, with their names, addresses, and telephone numbers that are not listed within items 13 and 14. Also include a description of their knowledge. For example, if your sister was with you when the alleged incident occurred, please include her name, address, telephone number, and indicate she witnessed the incident.
16) Please describe the incident that resulted in the injury or damages, specifically answering the questions who, what, where, when and why.
17) If you reported this incident to law enforcement, safety, or security personnel, please provide a copy of the report or contact information to the person you spoke with.
18) Please provide all of your medical providers with their names, address, telephone numbers, and the type of treatment. If you were treated for a personal injury, please include your medical records and bills.
19) Please attach any additional documents that support your claim.
20) Please provide the dollar amount for your damages, including your time loss, medical costs, property damage loss, etc. This amount should represent your opinion of total compensation.

- ✓ If you are filing a personal injury claim, please sign and attach the Medical Release.
- ✓ If your claim involves a motor vehicle accident, please complete, sign, and attach the vehicle accident form.

WASHINGTON STATE TORT CLAIM FORM

General Liability Claim Form #SF 210

Pursuant to Chapter 4.92 RCW, this form is for filing a tort claim against the state of Washington. Some of the information requested on this form is required by RCW 4.92.100 and is subject to public disclosure pursuant to RCW 42.56.

For Official Use Only

PLEASE TYPE OR PRINT CLEARLY IN INK

Mail or deliver original claim to

Department of Enterprise Services
Office of Risk Management
1500 Jefferson Street SE, MS 41466
Olympia, Washington 98504-1466
Phone: (360) 407-9199
Fax: (360) 407-8022
Email: Claims@des.wa.gov

Business Hours: Monday – Friday 8:00 a.m. – 5:00 p.m.
Closed on weekends and official state holidays.

1. Claimant's name: Rosa (Last name) Cheyanne (First) S (Middle) [redacted] (Date of birth (mm/dd/yyyy))
2. Inmate DOC number (if applicable): _____
3. Current residential address: [redacted]
4. Mailing address (if different): _____
5. Residential address at the time of the incident: _____ (if different from current address)
6. Claimant's daytime telephone number: _____ (Home) [redacted] (Business or Cell)
7. Claimant's e-mail address: [redacted]
8. Date of the incident: _____ (mm/dd/yyyy) Time: 0000 ☐ a.m. ☐ p.m. (check one)
9. If the incident occurred over a period of time, date of first and last occurrences:
   from 10/18/2021 (mm/dd/yyyy) Time: _____ (mm/dd/yyyy) ☐ a.m. ☐ p.m.
   to _____ (mm/dd/yyyy) Time: _____ (mm/dd/yyyy) ☐ a.m. ☐ p.m.
10. Location of incident: WA, King (State and county) Issaquah (City, if applicable) 130 E. Sunset Way, Issaquah, WA (Place where occurred)

11. If the incident occurred on a street or highway:

Name of street or highway	Milepost number	At the intersection with or nearest intersecting street

12. State agency or department you believe is responsible for damage/injury:

The City of Issaquah

13. Names and telephone numbers of all persons involved in or witness to this incident:

Dustin Huberdeau 509-[redacted]

14. Names and telephone numbers of all state employees having knowledge about this incident:

15. Names and telephone numbers of all individuals not already identified in #13 and #14 above that have knowledge regarding the liability issues involved in this incident, or knowledge of the Claimant's resulting damages. Please include a brief description as to the nature and extent of each person's knowledge. Attach additional sheets if necessary.

16. Describe how the state of Washington caused your injuries or damages (**if your injuries or damages were not caused by the State, do not use this form. You must file your claim against the correct entity**). Explain the extent of property loss or medical, physical or mental injuries. Attach additional sheets if necessary.

Issaquah Police Department violated my right to be free from discrimination in failing to accomodate my request for exemption from vaccination as allowed at law.

17. Has this incident been reported to law enforcement, safety or security personnel? If so, when and to whom? Please attach a copy of the report or contact information.

N/A

18. Names, addresses and telephone numbers of treating medical providers. Submit copies of all medical reports and billings.

19. Please attach documents which support the allegations of the claim.

20. I claim damages from the state of Washington in the sum of $ 7,000,000.

This Claim form must be signed by one of the following (check appropriate box).

- ☐ Claimant
- ☐ Person holding a written power of attorney from the Claimant
- ☐ Attorney in fact for the Claimant
- ☐ Attorney admitted to practice in Washington State on the Claimant's behalf
- ☐ Court-approved guardian or guardian ad litem on behalf of the Claimant

I declare under penalty of perjury under the laws of the state of Washington that the foregoing is true and correct.

	2/17/2022, [redacted] Mill Creek, Snohomish
Signature of Claimant	***Date and place (residential address, city and county)***
Or	
Signature of Representative	***Date and place (residential address, city and county)***
Print Name of Representative	***Bar Number (if applicable)***

Authorization for Release of Protected Health Information (PHI) to Department of Enterprise Services, Office of Risk Management

Name: Rosa, Cheyanne Summer
(Last, First, Middle Initial or Middle Name)

Date of Birth: Month [redacted] Day [redacted] Year [redacted]

I hereby authorize disclosure of my protected health information to the Department of Enterprise Services, Office of Risk Management (Risk Management) for purposes of processing my claim for damages filed with the state of Washington.

I understand that by signing this document, I authorize the release of the following information:

Complete medical record for all services, including history and physical exam; progress notes; x-ray reports; inpatient admissions; operative notes; physical or other therapy; laboratory and other test reports; physician and physician assistant orders; nursing notes; and all other records and references designated by the provider as part of its medical record.

HIV Test Results and medical information related to HIV testing or treatment

Psychiatric, mental and behavioral health records, including treatment notes, assessments, testing documents and results, and medical records related to mental health diagnosis and treatment

Alcohol assessment, testing, referral or treatment records

All other chemical dependency assessment of treatment records

Pharmacy prescriptions and reports

All letters and memos received or sent, including electronic mail, referencing my treatment, compliance with treatment and any other subject related to my medical treatment

Information related to alleged sexual assault or sexually transmitted disease, including test results

Urgent care, outpatient or other clinic visit information

Gynecological and/or obstetrical information

All client records generated for or by governmental programs of which I am a client. Identify the program(s) and agency: _____.

Financial records related to my care and treatment

I understand the following: **(PLEASE READ AND INITIAL ALL STATEMENTS)**

CR _____ Initials — I understand that my records are protected under HIPAA/PHI regulations (federal law) and the Washington State Health Care Information Act (RCW 70.02).

CR _____ Initials — I understand that my health information may be subject to re-disclosure by Risk Management and not protected for purposes of evaluating and investigating the claim I have filed with the state of Washington.

CR _____ Initials — I understand that the specific information to be disclosed in my medical record may include information regarding alcohol, drug or other controlled substance use, counseling referrals and/or a history of testing or treatment of acquired immune deficiency syndrome.

CR _____ Initials — I understand that I may revoke this authorization at any time by notifying Risk Management in writing, and that the revocation will be effective as of the date Risk Management receives it. Any records obtained pursuant to this Authorization for Release of PHI prior to the revocation will be deemed authorized by me for release.

CR _____ Initials — I understand that this Authorization for Release will expire 90 days from the date I sign it. I can also authorize a different time frame for this release to be valid. This permission is valid until my claim is resolved or closed by RMD.

A Photostat of this Authorization carries the same authority as the original for purposes of releasing my records to Risk Management.

Signature of Authorizing Individual: _____

Date of Signature: 02/17/2022

Telephone number: (817) [redacted]

Witness (where patient is over 13 and signing the release):

_____

Where the signer is not the subject of the records:

I am authorized to sign this because I am the (attach proof of authority):

- ☐ Parent of minor
- ☐ Legal Guardian
- ☐ Personal Representative
- ☐ Other

To the Provider or Records Custodian:

Please send legible copies of all records to:

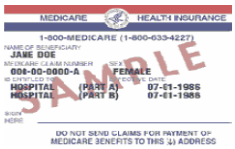
Department of Enterprise Services
Office of Risk Management
1500 Jefferson Street SE
Olympia, WA 98504-1466
Fax: 360-407-8022
Email: Claims@des.wa.gov

MMSEA REPORTING COMPLIANCE DECLARATION

The Centers for Medicare & Medicaid Services (CMS) is the federal agency that oversees the Medicare program. Many Medicare beneficiaries have other insurance in addition to their Medicare benefits. Sometimes, Medicare is supposed to pay after the other insurance. However, if certain other insurance delays payment, Medicare may make a "conditional payment" so as not to inconvenience the beneficiary and recover after the insurance pays.

Section 111 of the Medicare, Medicaid and SCHIP Extension Act of 2007 (MMSEA), a federal law that became effective January 1, 2009, requires that liability insurers (including self-insurers like the state of Washington), no-fault insurers, and workers' compensation plans report specific information about Medicare beneficiaries who have other insurance coverage. This reporting is to assist CMS and other insurance plans to properly coordinate payment of benefits among plans so that your claims are paid promptly and correctly. Please answer the questions below so that we may comply with this law.

Please review this picture of the Medicare card to determine if you have, or have ever had, a similar Medicare card.



Section I

Are you presently, or have you ever been enrolled in Medicare Part A or Part B?	Yes☐	No☐
If yes, please complete the following. If no, proceed to Section II.		
Full Name: *(Please print the name exactly as it appears on the SSN or Medicare card if available.)*		
Medicare Claim Number:	**Date of Birth(Mo/Day/Year)**	
Social Security Number: (If Medicare Claim Number is Unavailable) - -	**Sex**	Female☐ Male☐

Section II

I understand that the information requested is to assist the requesting insurance arrangement to accurately coordinate benefits with Medicare and to meet its mandatory reporting obligations under Medicare law.

Claimant Name (Please Print) **Claim Number**

Name of Person Completing This Form If Claimant is Unable (Please Print)

Signature of Person Completing This Form **Date**

If you have completed Sections I and II above, stop here. If you are refusing to provide the information requested in Sections I and II, proceed to Section III.

Section III

Claimant Name (Please Print) **Claim Number**

For the reason(s) listed below, I have not provided the information requested. I understand that if I am a Medicare beneficiary and I do not provide the requested information, I may be violating obligations as a beneficiary to assist Medicare in coordinating benefits to pay my claims correctly and promptly.

Reason(s) for Refusal to Provide Requested Information:

Signature of Person Completing This Form **Date**

VEHICLE COLLISION FORM

PLEASE TYPE OR PRINT IN INK

Please attach this form to your standard tort claim form, if the claim involves a vehicle collision.

CLAIMANT AND INCIDENT INFORMATION

CLAIMANT'S NAME **(A SEPARATE FORM MUST BE COMPLETED FOR EACH CLAIMANT)** | DATE OF ACCIDENT(mm/dd/yyyy) | TIME AM ☐ PM ☐

CURRENT STREET (RESIDENCE) ADDRESS | CITY | STATE | ZIP | PHONE HOME WORK

(RESIDENCE) STREET ADDRESS FOR SIX MONTHS PRIOR TO THE ACCIDENT | CITY | STATE | ZIP | EMAIL

State/County/City (if applicable) where occurred | STREET OR HWY | MILEPOST NO. | INTERSECTION OR NEAREST STREET/ROAD

YOUR VEHICLE INFORMATION (VEHICLE #1)

YEAR | MAKE | MODEL | LICENSE PLATE NO. | WHERE CAN CAR BE SEEN? | WHEN?

NAME OF VEHICLE OWNER | ADDRESS | CITY | HOME AND WORK PHONE

NAME OF DRIVER | ADDRESS | CITY | HOME AND WORK PHONE

DRIVER'S LICENSE NUMBER | STATE OF ISSUANCE | DATE OF EXPIRATION

DESCRIBE DAMAGE | ESTIMATE $ | YOUR INSURANCE COMPANY AND POLICY NO.

OTHER VEHICLE INFORMATION (VEHICLE #2)

YEAR | MAKE | MODEL | LICENSE PLATE NO. | STATE AGENCY, IF KNOWN

NAME OF OWNER | ADDRESS | CITY | PHONE

NAME OF DRIVER | ADDRESS | CITY | PHONE

DESCRIBE DAMAGE | ESTIMATE $

OTHER NON-VEHICLE DAMAGE

WAS OTHER (NON-VEHICLE) PROPERTY DAMAGED? IF SO, DESCRIBE WHAT TYPE OF PROPERTY WAS DAMAGED.

NAME OF OWNER | ADDRESS | CITY | PHONE

DESCRIBE DAMAGE | ESTIMATE $

INJURED PARTIES

NAME	ADDRESS	PHONE	INJURY	AGE	VEH 1	VEH 2	VEH 3	PED	OTH
		HOME WORK			☐	☐	☐	☐	☐
		HOME WORK			☐	☐	☐	☐	☐
		HOME WORK			☐	☐	☐	☐	☐
		HOME WORK			☐	☐	☐	☐	☐
		HOME WORK			☐	☐	☐	☐	☐

WITNESSES

NAME (ATTACH ADDITIONAL SHEETS IF NECESSARY) | ADDRESS | CITY | PHONE

HOME WORK

HOME WORK

HOME WORK

COMPLETE ALL DETAILS

Describe conduct and circumstances causing injury or damages and explain the extent of medical, physical or mental injuries. Please identify name, address, and telephone number of treating physicians and other medical providers. Please attach property damage estimates and/or all medical bills in support of your claim. If necessary, attach additional pages containing information in this format.

_____

_____

_____

_____

_____

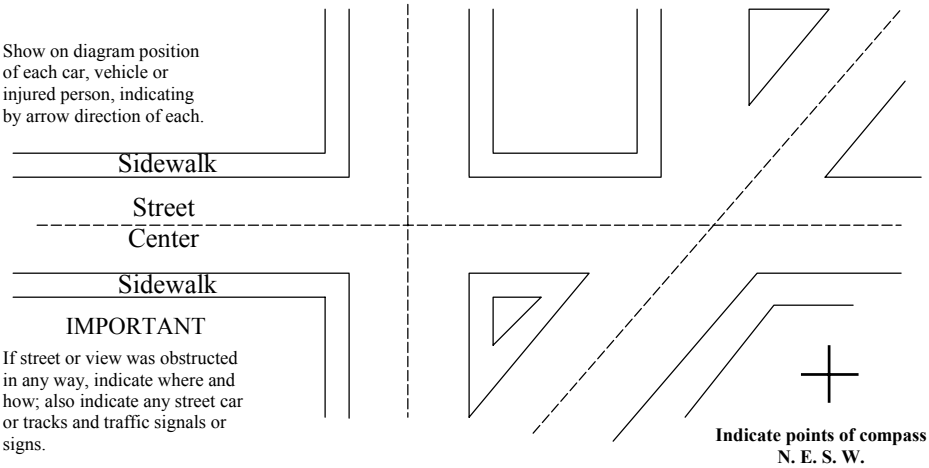
_____

☐ Straight Road
☐ Curve – R or L
☐ Level

☐ Hillcrest
☐ Uphill
☐ Downhill

☐ One Lane
☐ One and One-Half Lane
☐ Two Lane or Four Lane

Show on diagram position of each car, vehicle or injured person, indicating by arrow direction of each.

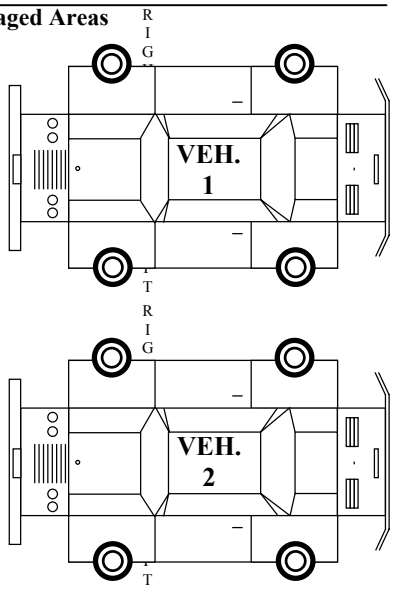


IMPORTANT

If street or view was obstructed in any way, indicate where and how; also indicate any street car or tracks and traffic signals or signs.

Indicate points of compass
N. E. S. W.

Mark Damaged Areas



LIGHT CONDITIONS (CHECK ONE)	TRAFFIC CONTROL	TYPE OF ROAD (CHECK ONE OR MORE)	VEHICLE CONDITION (CHECK ONE OR MORE)	ROAD SURFACE (CHECK ONE)	WEATHER (CHECK ONE)
1 ☐ DAYLIGHT	VEHICLE NO. 1 NO. 2	VEHICLE NO. 1 NO. 2	VEHICLE NO. 1 NO. 2	VEHICLE NO. 1 NO. 2	1 ☐ CLEAR, CLOUDY & OVERCAST
2 ☐ DAWN	1 ☐ ☐ SIGNALS	1 ☐ ☐ ONE WAY	1 ☐ ☐ DEFECTIVE BRAKES	1 ☐ ☐ DRY	2 ☐ RAINING
3 ☐ DUSK	2 ☐ ☐ STOP SIGN	2 ☐ ☐ TWO WAY	2 ☐ ☐ DEFECTIVE HEADLIGHTS	2 ☐ ☐ WET	3 ☐ SNOWING
4 ☐ DARK STREET LIGHTS ON	3 ☐ ☐ FLASHING RED	3 ☐ ☐ REVERSIBLE ROAD	3 ☐ ☐ DEFECTIVE REAR LIGHTS	3 ☐ ☐ SNOW	4 ☐ FOG
5 ☐ DARK STREET LIGHTS OFF	4 ☐ ☐ FLASHING AMBER	4 ☐ ☐ INTER-CHANGE LOOP RAMP	4 ☐ ☐ TIRES WORN	4 ☐ ☐ ICE	5 ☐ OTHER (SPECIFY)
6 ☐ DARK NO STREET LIGHT	5 ☐ ☐ RR SIGNAL	5 ☐ ☐ ALLEY	5 ☐ ☐ PUNCTURED OR BLOWN TIRES	5 ☐ ☐ OTHER (SPECIFY)	
7 ☐ OTHER (SPECIFY)	6 ☐ ☐ OFFICER/ FLAGMAN	6 ☐ ☐ TWO WAY-LEFT TURN LANES	6 ☐ ☐ OTHER (SPECIFY)		
	7 ☐ ☐ YIELD SIGN	1 ☐ ☐ SEPARATED		NAME OF INVESTIGATING POLICE AGENCY: _____	
	8 ☐ ☐ NO TRAFFIC CONTROL	2 ☐ ☐ DIVIDED		INVESTIGATING AGENCY REPORT NO. _____	
	9 ☐ ☐ OTHER	3 ☐ ☐ UNDIVIDED			

A separate claim form should be submitted for each claimant.

This information is being provided to aid in resolving the claim.

I declare under penalty of perjury under the laws of the State of Washington that the foregoing is true and correct.

_____ _____

Signature of Claimant ***Date and Place (residential address, city and county)***

JS 44 (Rev. 04/21)

CIVIL COVER SHEET

The JS 44 civil cover sheet and the information contained herein neither replace nor supplement the filing and service of pleadings or other papers as required by law, except as provided by local rules of court. This form, approved by the Judicial Conference of the United States in September 1974, is required for the use of the Clerk of Court for the purpose of initiating the civil docket sheet. *(SEE INSTRUCTIONS ON NEXT PAGE OF THIS FORM.)*

I. (a) PLAINTIFFS

(b) County of Residence of First Listed Plaintiff King County
(EXCEPT IN U.S. PLAINTIFF CASES)

(c) Attorneys *(Firm Name, Address, and Telephone Number)*
Tracy Tribbett
Pacific Justice Institute

DEFENDANTS

County of Residence of First Listed Defendant King County
(IN U.S. PLAINTIFF CASES ONLY)

NOTE: IN LAND CONDEMNATION CASES, USE THE LOCATION OF THE TRACT OF LAND INVOLVED.

Attorneys *(If Known)*

II. BASIS OF JURISDICTION *(Place an "X" in One Box Only)*

- ☐ 1 U.S. Government Plaintiff
- ☐ 3 Federal Question *(U.S. Government Not a Party)*
- ☐ 2 U.S. Government Defendant
- ☐ 4 Diversity *(Indicate Citizenship of Parties in Item III)*

III. CITIZENSHIP OF PRINCIPAL PARTIES *(Place an "X" in One Box for Plaintiff and One Box for Defendant)*

(For Diversity Cases Only)

	PTF	DEF		PTF	DEF
Citizen of This State	☒ 1	☐ 1	Incorporated *or* Principal Place of Business In This State	☐ 4	☒ 4
Citizen of Another State	☐ 2	☐ 2	Incorporated *and* Principal Place of Business In Another State	☐ 5	☐ 5
Citizen or Subject of a Foreign Country	☐ 3	☐ 3	Foreign Nation	☐ 6	☐ 6

IV. NATURE OF SUIT *(Place an "X" in One Box Only)*

Click here for: Nature of Suit Code Descriptions.

CONTRACT
- ☐ 110 Insurance
- ☐ 120 Marine
- ☐ 130 Miller Act
- ☐ 140 Negotiable Instrument
- ☐ 150 Recovery of Overpayment & Enforcement of Judgment
- ☐ 151 Medicare Act
- ☐ 152 Recovery of Defaulted Student Loans (Excludes Veterans)
- ☐ 153 Recovery of Overpayment of Veteran's Benefits
- ☐ 160 Stockholders' Suits
- ☐ 190 Other Contract
- ☐ 195 Contract Product Liability
- ☐ 196 Franchise

TORTS

PERSONAL INJURY
- ☐ 310 Airplane
- ☐ 315 Airplane Product Liability
- ☐ 320 Assault, Libel & Slander
- ☐ 330 Federal Employers' Liability
- ☐ 340 Marine
- ☐ 345 Marine Product Liability
- ☐ 350 Motor Vehicle
- ☐ 355 Motor Vehicle Product Liability
- ☐ 360 Other Personal Injury
- ☐ 362 Personal Injury - Medical Malpractice

PERSONAL INJURY
- ☐ 365 Personal Injury - Product Liability
- ☐ 367 Health Care/ Pharmaceutical Personal Injury Product Liability
- ☐ 368 Asbestos Personal Injury Product Liability

PERSONAL PROPERTY
- ☐ 370 Other Fraud
- ☐ 371 Truth in Lending
- ☐ 380 Other Personal Property Damage
- ☐ 385 Property Damage Product Liability

FORFEITURE/PENALTY
- ☐ 625 Drug Related Seizure of Property 21 USC 881
- ☐ 690 Other

BANKRUPTCY
- ☐ 422 Appeal 28 USC 158
- ☐ 423 Withdrawal 28 USC 157

OTHER STATUTES
- ☐ 375 False Claims Act
- ☐ 376 Qui Tam (31 USC 3729(a))
- ☐ 400 State Reapportionment
- ☐ 410 Antitrust
- ☐ 430 Banks and Banking
- ☐ 450 Commerce
- ☐ 460 Deportation
- ☐ 470 Racketeer Influenced and Corrupt Organizations
- ☐ 480 Consumer Credit (15 USC 1681 or 1692)
- ☐ 485 Telephone Consumer Protection Act
- ☐ 490 Cable/Sat TV
- ☐ 850 Securities/Commodities/ Exchange
- ☐ 890 Other Statutory Actions
- ☐ 891 Agricultural Acts
- ☐ 893 Environmental Matters
- ☐ 895 Freedom of Information Act
- ☐ 896 Arbitration
- ☐ 899 Administrative Procedure Act/Review or Appeal of Agency Decision
- ☐ 950 Constitutionality of State Statutes

REAL PROPERTY
- ☐ 210 Land Condemnation
- ☐ 220 Foreclosure
- ☐ 230 Rent Lease & Ejectment
- ☐ 240 Torts to Land
- ☐ 245 Tort Product Liability
- ☐ 290 All Other Real Property

CIVIL RIGHTS
- ☐ 440 Other Civil Rights
- ☐ 441 Voting
- ☐ 442 Employment
- ☐ 443 Housing/ Accommodations
- ☐ 445 Amer. w/Disabilities - Employment
- ☐ 446 Amer. w/Disabilities - Other
- ☐ 448 Education

PRISONER PETITIONS

Habeas Corpus:
- ☐ 463 Alien Detainee
- ☐ 510 Motions to Vacate Sentence
- ☐ 530 General
- ☐ 535 Death Penalty

Other:
- ☐ 540 Mandamus & Other
- ☐ 550 Civil Rights
- ☐ 555 Prison Condition
- ☐ 560 Civil Detainee - Conditions of Confinement

LABOR
- ☐ 710 Fair Labor Standards Act
- ☐ 720 Labor/Management Relations
- ☐ 740 Railway Labor Act
- ☐ 751 Family and Medical Leave Act
- ☐ 790 Other Labor Litigation
- ☐ 791 Employee Retirement Income Security Act

IMMIGRATION
- ☐ 462 Naturalization Application
- ☐ 465 Other Immigration Actions

INTELLECTUAL PROPERTY RIGHTS
- ☐ 820 Copyrights
- ☐ 830 Patent
- ☐ 835 Patent - Abbreviated New Drug Application
- ☐ 840 Trademark
- ☐ 880 Defend Trade Secrets Act of 2016

SOCIAL SECURITY
- ☐ 861 HIA (1395ff)
- ☐ 862 Black Lung (923)
- ☐ 863 DIWC/DIWW (405(g))
- ☐ 864 SSID Title XVI
- ☐ 865 RSI (405(g))

FEDERAL TAX SUITS
- ☐ 870 Taxes (U.S. Plaintiff or Defendant)
- ☐ 871 IRS—Third Party 26 USC 7609

V. ORIGIN *(Place an "X" in One Box Only)*

- ☐ 1 Original Proceeding
- ☐ 2 Removed from State Court
- ☐ 3 Remanded from Appellate Court
- ☐ 4 Reinstated or Reopened
- ☐ 5 Transferred from Another District *(specify)*
- ☐ 6 Multidistrict Litigation - Transfer
- ☐ 8 Multidistrict Litigation - Direct File

VI. CAUSE OF ACTION

Cite the U.S. Civil Statute under which you are filing ***(Do not cite jurisdictional statutes unless diversity)***:
Violations of Title VII, WLAD, and Due Process violations alleged under §1983

Brief description of cause:
Plaintiff worked for Issaquah and was terminated on the basis of her protected status without just cause.

VII. REQUESTED IN COMPLAINT:

☐ CHECK IF THIS IS A **CLASS ACTION** UNDER RULE 23, F.R.Cv.P.

DEMAND $

CHECK YES only if demanded in complaint:
JURY DEMAND: ☒ Yes ☐ No

VIII. RELATED CASE(S) IF ANY

(See instructions): JUDGE _____ DOCKET NUMBER _____

DATE
12-15-22

SIGNATURE OF ATTORNEY OF RECORD
Tracy Tribbett

FOR OFFICE USE ONLY

RECEIPT # _____ AMOUNT _____ APPLYING IFP _____ JUDGE _____ MAG. JUDGE _____

INSTRUCTIONS FOR ATTORNEYS COMPLETING CIVIL COVER SHEET FORM JS 44

Authority For Civil Cover Sheet

The JS 44 civil cover sheet and the information contained herein neither replaces nor supplements the filings and service of pleading or other papers as required by law, except as provided by local rules of court. This form, approved by the Judicial Conference of the United States in September 1974, is required for the use of the Clerk of Court for the purpose of initiating the civil docket sheet. Consequently, a civil cover sheet is submitted to the Clerk of Court for each civil complaint filed. The attorney filing a case should complete the form as follows:

I.(a) **Plaintiffs-Defendants.** Enter names (last, first, middle initial) of plaintiff and defendant. If the plaintiff or defendant is a government agency, use only the full name or standard abbreviations. If the plaintiff or defendant is an official within a government agency, identify first the agency and then the official, giving both name and title.

(b) **County of Residence.** For each civil case filed, except U.S. plaintiff cases, enter the name of the county where the first listed plaintiff resides at the time of filing. In U.S. plaintiff cases, enter the name of the county in which the first listed defendant resides at the time of filing. (NOTE: In land condemnation cases, the county of residence of the "defendant" is the location of the tract of land involved.)

(c) **Attorneys.** Enter the firm name, address, telephone number, and attorney of record. If there are several attorneys, list them on an attachment, noting in this section "(see attachment)".

II. **Jurisdiction.** The basis of jurisdiction is set forth under Rule 8(a), F.R.Cv.P., which requires that jurisdictions be shown in pleadings. Place an "X" in one of the boxes. If there is more than one basis of jurisdiction, precedence is given in the order shown below.
United States plaintiff. (1) Jurisdiction based on 28 U.S.C. 1345 and 1348. Suits by agencies and officers of the United States are included here.
United States defendant. (2) When the plaintiff is suing the United States, its officers or agencies, place an "X" in this box.
Federal question. (3) This refers to suits under 28 U.S.C. 1331, where jurisdiction arises under the Constitution of the United States, an amendment to the Constitution, an act of Congress or a treaty of the United States. In cases where the U.S. is a party, the U.S. plaintiff or defendant code takes precedence, and box 1 or 2 should be marked.
Diversity of citizenship. (4) This refers to suits under 28 U.S.C. 1332, where parties are citizens of different states. When Box 4 is checked, the citizenship of the different parties must be checked. (See Section III below**; NOTE: federal question actions take precedence over diversity cases.**)

III. **Residence (citizenship) of Principal Parties.** This section of the JS 44 is to be completed if diversity of citizenship was indicated above. Mark this section for each principal party.

IV. **Nature of Suit.** Place an "X" in the appropriate box. If there are multiple nature of suit codes associated with the case, pick the nature of suit code that is most applicable. Click here for: Nature of Suit Code Descriptions.

V. **Origin.** Place an "X" in one of the seven boxes.
Original Proceedings. (1) Cases which originate in the United States district courts.
Removed from State Court. (2) Proceedings initiated in state courts may be removed to the district courts under Title 28 U.S.C., Section 1441.
Remanded from Appellate Court. (3) Check this box for cases remanded to the district court for further action. Use the date of remand as the filing date.
Reinstated or Reopened. (4) Check this box for cases reinstated or reopened in the district court. Use the reopening date as the filing date.
Transferred from Another District. (5) For cases transferred under Title 28 U.S.C. Section 1404(a). Do not use this for within district transfers or multidistrict litigation transfers.
Multidistrict Litigation – Transfer. (6) Check this box when a multidistrict case is transferred into the district under authority of Title 28 U.S.C. Section 1407.
Multidistrict Litigation – Direct File. (8) Check this box when a multidistrict case is filed in the same district as the Master MDL docket.
PLEASE NOTE THAT THERE IS NOT AN ORIGIN CODE 7. Origin Code 7 was used for historical records and is no longer relevant due to changes in statute.

VI. **Cause of Action.** Report the civil statute directly related to the cause of action and give a brief description of the cause. **Do not cite jurisdictional statutes unless diversity.** Example: U.S. Civil Statute: 47 USC 553 Brief Description: Unauthorized reception of cable service.

VII. **Requested in Complaint.** Class Action. Place an "X" in this box if you are filing a class action under Rule 23, F.R.Cv.P.
Demand. In this space enter the actual dollar amount being demanded or indicate other demand, such as a preliminary injunction.
Jury Demand. Check the appropriate box to indicate whether or not a jury is being demanded.

VIII. **Related Cases.** This section of the JS 44 is used to reference related pending cases, if any. If there are related pending cases, insert the docket numbers and the corresponding judge names for such cases.

Date and Attorney Signature. Date and sign the civil cover sheet.

AO 440 (Rev. 06/12) Summons in a Civil Action

UNITED STATES DISTRICT COURT

for the

Cheyanne Rosa Dixson

Plaintiff(s)

v.

City of Issaquah Police Department, Mayor Mary Lou Pauly, Wally Bobkiewicz, Does 1-25

Defendant(s)

Civil Action No.

SUMMONS IN A CIVIL ACTION

To: *(Defendant's name and address)* City of Issaquah PD, Mary Lou Pauly, Wally Bobkiewicz
130 E Sunset Way
Issaquah, WA. 98027

A lawsuit has been filed against you.

Within 21 days after service of this summons on you (not counting the day you received it) — or 60 days if you are the United States or a United States agency, or an officer or employee of the United States described in Fed. R. Civ. P. 12 (a)(2) or (3) — you must serve on the plaintiff an answer to the attached complaint or a motion under Rule 12 of the Federal Rules of Civil Procedure. The answer or motion must be served on the plaintiff or plaintiff's attorney, whose name and address are:

Tracy Tribbett
6404 Three Rivers Drive
Pasco WA 99301

If you fail to respond, judgment by default will be entered against you for the relief demanded in the complaint. You also must file your answer or motion with the court.

CLERK OF COURT

Date: 12-13-22

Signature of Clerk or Deputy Clerk

Civil Action No.

PROOF OF SERVICE

(This section should not be filed with the court unless required by Fed. R. Civ. P. 4 (l))

This summons for *(name of individual and title, if any)* _____ was received by me on *(date)* _____ .

❒ I personally served the summons on the individual at *(place)* _____ on *(date)* _____ ; or

❒ I left the summons at the individual's residence or usual place of abode with *(name)* _____ , a person of suitable age and discretion who resides there, on *(date)* _____ , and mailed a copy to the individual's last known address; or

❒ I served the summons on *(name of individual)* _____ , who is designated by law to accept service of process on behalf of *(name of organization)* _____ on *(date)* _____ ; or

❒ I returned the summons unexecuted because _____ ; or

❒ Other *(specify):*

My fees are $ _____ for travel and $ _____ for services, for a total of $ 0.00 .

I declare under penalty of perjury that this information is true.

Date: _____

_____
Server's signature

_____
Printed name and title

_____
Server's address

Additional information regarding attempted service, etc:

Print Save As... Reset